

25CMCV00210 25CMCV00210

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-03

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Case Number: 25CMCV00210 Hearing Date: August 3, 2026 Dept: A

The court DENIES the application for order granting compromise, without prejudice. Applicant failed to attach a copy of the written fee agreement between plaintiff and counsel, as is required. No itemization of costs sought to be recovered by Plaintiff's counsel is provided, as is required. The Confidential Settlement Agreement and Release is not provided, as is required. In section 18b, request is made for \$20,000 to be held on conditions stated in attachment 18b(8), but no attachment 18b(8) is provided, nor is the source of the \$20,000 to be withheld stated.

The Calvin Declaration states that the net proceeds to Plaintiff are to be held "in trust" and used for Plaintiff's funeral expenses and any remainder shall be distributed to Plaintiff's heirs. Because it appears that Plaintiff is still alive at this time, all proceeds shall be designated for Plaintiff's use and benefit and shall not be allocated to any heirs.

The court also notes that a substantial medical lien is not resolved, and Applicant requests that the court retain jurisdiction with respect to the resolution of said lien. Due to the nominal amount of net proceeds payable to Plaintiff under the proposed settlement, the court is not inclined to authorize the compromise until the outstanding medical lien(s) is/are resolved. For the same reason, the court requires a detailed explanation by Plaintiff's counsel as to why the settlement is fair and reasonable.

Based on the foregoing, the application is denied without prejudice.